

**SFIO Vs Adarsh Buildtech. And others COMA
No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel, alongwith Sh.Satish Aggarwal, SFIO assisted by Sh. Hari Kishan, Public Prosecutor for the SFIO.

**Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi**

Present : Accused Rohit Modi, authorized representative of the above companies not produced by the jail authorities.

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody in this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case.

Today accused Rohit Modi, has been produced through video conferencing. Accused Rohit be kept in Central Jail, Jail(Rajasthan) till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

**Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)**

The anticipatory bail application filed by accused A-135, Sidharth Chauhan in his personal capacity as well as being Director and authorized representative of accused companies A-71 to A-78, has been dismissed vide detailed order dated 1.8.2019 by my Learned Predecessor and now his application for bail has also been dismissed by our Hon'ble High Court, Chandigarh vide order dated 13.11.2019. But despite this, he has not appeared or surrendered. No other authorized person on behalf of

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above accused-companies has appeared despite notice to the above accused. As such, these companies shall be represented by above accused.

However, in order to procure the service of accused, named-above, in his personal capacity, warrant of arrest issued against him has not been received back either executed or unexecuted. As such, his fresh warrant of arrest be issued for 31.1.2020 to be executed by DCP Hq., Guurgram through a senior police officer, who will appear on the date fixed to explain, if it remained un-executed.

Accused Companies promoted by accused, Vivek Harivyasi:

A-79 :	A3G Infra Private Limited
A-90 :	Cynosure Real Estate Pvt. Ltd.
A-91 :	EOS Developers Pvt. Ltd.
A-92 :	Adler Infra Ventures Pvt. Ltd.
A-93 :	Headstrong International Exports Pvt. Ltd.
A-115:	Vivek Harivyasi in custody.

Present: Accused Vivek Harivyasi, in custody No. A-115, with counsel.

Today accused Vivek Harivyasi, has been produced through video conferencing. Accused Vivek Harivyasi be kept in District Jail, Bhondsi till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

**Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, Accused No. A-139 and AR for No. A-80)**

Bailable warrant of the above accused-company through its AR not issued as fresh/complete address not filed by SFIO. However, SFIO filed an application by stating that as per RoC data the latest address is the same address which is already mentioned in the complaint. Let fresh bailable warrants be issued for 31.1.2020. Dasti be given if requested.

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Accused Companies,

A-81 : HNS Infratech Pvt. Ltd.

A-82 : HNS Projects Pvt. Ltd.

(Through Accused A-140, Surender Singh)

(Regular bail of accused A-140 Surender Singh has been dismissed by Hon'ble High Court, Chandigarh on 13.11.2019)

Present : Accused A-140, Surender Singh in custody with Sh. Anuj Lohia, Advocate for accused.

Accused No. A-140 produced before me through Video Conferencing. He be kept in District Jail, Bhondsi, Gurugram till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Present : None

Bailable warrant of the above accused-company through its AR not issued as fresh/complete address not filed by SFIO. However, SFIO filed an application by stating that as per RoC data the latest address is the same address which is already mentioned in the complaint. Let fresh bailable warrants be issued for 31.1.2020. Dasti be given if requested.

Accused-Partnership Firm, A-84, Abhay Kumar and Associates (through Accused Abhay K. Shah, A-127, its partner)

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

Warrant of arrest issued for today received back unexecuted with report that he is not found present at his house. Execution of warrant of arrest of accused no. 127, issued in pursuance of order dated 3.10.2019,

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is hereby extended upto 31.1.2020 to be executed by DCP Hq., Gurugram through a senior police officer, who will appear on the date fixed to explain, if it remained un-executed.

At this stage, an application under section 317 Cr.P.C., on behalf of accused no. 127 seeking exemption from personal appearance moved on the ground that applicant/accused has approached Hon'ble High Court, Chandigarh to seek remedy available to him and his matter may get listed in next week. Request was strongly opposed by complainant side. Heard. Record perused. The allegations are serious in nature. No justifiable ground is made out for exemption from personal appearance. Request is declined.

Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.

Present : Accused No.A-130, Jainam Rathod in custody with
S/Shri Salim Malik, Advocate along with Gulshan
Sharma, Local Advocate.

Accused No. A-130, Jainam Rathod has already surrendered and been arrested. His regular bail application has also been dismissed by our Hon'ble High Court, Chandigarh, vide order dated 13.11.2019. As such, his presence is marked on behalf of above accused company, A-85, as well as in his individual capacity.

Accused A-130 produced before me through Video conferencing. He be kept in District Jail, Bhondsi, Gurugram till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

Accused companies :
A-86 : Laxmikripa Buildcon Pvt. Ltd.
A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.

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A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

**Present: Shri Jai Singh Chauhan, AR of above companies (not present today).
Shri Harash Kaushik, Advocate and Sh.
Kuldeep Singh, Local Advocate assisted by Sh. Abhishek Sharma, Advocate.**

All the above accused companies are duly represented by Shri Jai Singh Chauhan, Authorized representative, who has already appeared as per section 305. As such, he is directed to appear on date fixed 31.1.2020 for further proceedings.

**Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Sudhir Mehta, Accused No. A-170 and Raj Kumar Bohra, accused A-171, its partners)**

Present: Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local Advocate for the all the above accused.

Since an application for anticipatory bail on behalf of accused-firm, A-89, which has been filed by the applicant-accused, No. A-170 and A-171 on previous date of hearing, is pending adjudication, therefore, the relief granted to said accused by my learned Predecessor vide order dated 4.9.2019 shall continue till decision of Anticipatory Bail application.

Accused Companies No.:

A-94: Aarti Marketing Pvt. Ltd.

A-95: Caranation Trading Pvt. Ltd.

A-96: Cyan Financial Solutions Pvt. Ltd.

A-97: Lever Finvest Pvt. Ltd.

Present:

Rahul S/o Mangal Sain on bail (Being Director and AR of above companies)

S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

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All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 31.1.2020 for further proceedings.

Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)

Present:

Naresh Kumar S/o Har Prasad on bail (Being Director and AR above company)
S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 31.1.2020 for further proceedings.

Accused-companies : A-99 : Dinkar Commercials Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd.
(through Accused No. A-176 Raj Kumar Modi, its director)

Present: Accused No. A 176 Raj Kumar Modi in custody.

The accused has been produced through Video conferencing. He be kept in District Jail, Bhondsi, Gurugram till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

Accused-companies:

A-101: Alba Polymers Ltd.
A-102: Channel Nine Entertainment Ltd.
A-103: Funny Software Ltd.
A-104: Gold Line International Finvest Ltd.
A-105 : Inceptum Enterprises Limited
A-106 : Kanak Krishi Implements Ltd.
A-108: Porsche Capital Market Ltd.
A-109 : Sagitarius Advertising Ltd.

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A-110: Satkar Finlease Ltd.
A-111 : Surya Marketing Ltd.
A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Present:

Sh. Abishek, AR of A-101, along with S/Shri Kaushal Kumar and Ranjan Kumar, Advocates.
Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.
Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.
Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.
Sh. Annop, AR of A-105 along with Sandeep Joon, Advocate.
Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj, Advocate.
Sh. Ranjan Kumar, Advocate for Jishan, AR of A-108
Sh. Vikas Paul, AR of A-109 along with Sachin Bali, Advocate.
Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar, Advocate.
Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh, Advocate.
Sh Devender Kumar on bail (Being Director and AR of A-112 company) along with S/Sh. Rohit Arora and Anubhav Almadi, Advocates.

The ARs of all the above accused companies as named above are present. Their presence is accordingly marked on behalf of the accused companies referred above. And they all are directed to appear on date fixed, 31.1.2020 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

Bailable warrant of above mentioned accused company, A-107 received back unexecuted with the report that the premises of said company are lying closed. Fresh bailable warrant be issued for 31.1.2020 to be executable through DCP Hq., as learned PP stated at bar as well as through written application, mentioned earlier, that the latest known address is already on the file on which bailable warrants are being issued

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and that the concerned company official is intentionally and deliberately evading the process of law.

**Accused who are in custody produced by Jail Incharge, Jaipur
through Video Conferencing**

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

All the above named accused have already been arrested in this case and sent to judicial custody. However, after the arrest of all the above accused, they were taken by Jaipur Police in another case and were lodged in Central Jail, Jaipur.

All the above named accused, except accused Rahul No. A-114, Ishwar No. A-131 and Mukesh Modi A-113, produced before me through Video conferencing. Accused Rahul No. A-114, Ishwar No. A-131 and Mukesh Modi A-113 were not produced and it was stated that they have been taken to Junagarh and Sabirmati Courts for their appearance. However, their jail warrants were received in the court. All above named accused be kept in Central Jail, Jaipur till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

**A-117 : Priyanka Modi in custody with Sh. Prashant Yadav,
Advocate.**

Accused Priyanka Modi A-117 produced before me through Video conferencing. Above named accused be kept in Central Jail, Jaipur

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till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari
(Exempted from personal appearance till further orders)

Present : All the above accused on bail represented through
Shri Mohan Chaudhary and Shri Rakesh Kumar,
Advocates

Today Sh. Rakesh Kumar, Adv. put in appearance on behalf of said accused persons. He is directed to appear in the court on 31.1.2020 for further proceedings.

Accused who are absent but moved bail applications
under section 438 Cr.P.C.

A-118 : Jinendra Vyas (Anticipatory bail application dismissed on
24.9.2019 by my learned Predecessor)

A-127 : Abhay K. Shah (Anticipatory bail application dismissed
on 23.9.2019 by my learned Predecessor)

A-137 : Shinder Pal Singh (Anticipatory bail application
dismissed on 13.9.2019 by my learned Predecessor)

A-138 : Girbir Singh Sandhu (Anticipatory bail application
dismissed on 13.9.2019 by my learned Predecessor)

A-155 : Mahender Singh Tak
A-163 : Megha Chauhan
A-164 : Indu Tak
A-165 : Shyam Bihari Gupta
A-166 : Ravi Tak
A-170 : Sudhir Mehta
A-171 : Raj Kumar Bohra
A-172 : Saurabh Tak
A-178 : Mahesh Dutt Sharma
A-187 : Mahesh Kumar Tak

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(Anticipatory bail of remaining accused mentioned above are still pending)

In so far as, accused Nos. 155, 163, 164, 165, 166, 170, 171, 172, 178 and 187 are concerned, the benefit granted to them by my learned Predecessor vide order dated 4.9.2019 shall remain admissible to them.

Warrant of arrest issued against remaining accused named above not received back executed or unexecuted. Execution of warrant of arrest issued against these persons, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 31.1.2020 to be executable through DCP(HQ) who is to appear in court in person in case of non-execution on the date fixed.

Accused, who are not served with Bailable warrants.

A-144 : Joydeep Dass Gupta

A-145 : Lovekush Sharma

A-148 : Avanish Kumar Tyagi

A-151 : Poonam Madan

(above named accused on bail but exempted from personal appearance till further order vide order dated 22.11.2019 and represented by Sh. Vishal Gupta, Adv.)

A-152 : Nazima Khan

A-153 : Shabbir Khan

A-154 : Bharat Kumar Mardia

(Above named accused No. 154 on bail with Ms. Suchitra Kumbhat, Adv.)

A-156 : Praveen Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

A-157 : Rajeev Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

Sh. Sanjeev Jain, Advocate for accused no. A-156 and A-157

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Accused No. A-144, A-145, A-148 and A-159 are on bail but they have been exempted from personal appearance till further order vide order dated 22.11.2019 and today Sh. Vishal Gupta, Adv. has put his appearance on their behalf. He is directed to appear on next date of hearing i.e. 31.1.2020 for further proceedings.

Accused No. A-156 and A-157, who are on bail, have put in appearance. They are directed to appear on the date fixed i.e. 31.1.2020 for further proceedings.

Bailable warrants of accused No. 152 and 153 remained un-executed with report that there is a company at the given address and both the named accused are not residing or working at the said address. In view of the report, learned PP is impressed upon to submit the complete/correct address of above named accused within 7 days and then bailable warrants of other accused who are unserved for today be issued for 31.1.2020.

Accused A-154 appeared in person. He is directed to appear in the court on 31.1.2020 for further proceedings.

Accused who are absent.

- A-116 : Nitin Rathore with (Sh. Aljo K. Joseph,Adv.)
(A/bail application dismissed on 15.11.2019 by
this court)**
- A-119 : Vinay Kumpawat**
- A-121 : Paras Bolia (A/bail application pending)**
- A-124 : Neha Gemawat**
- A-128 : Manish Chauhary**
- A-129 : Deepak Shrimali**
- A-132 : Meenakshi Modi**
- A-133 : Prakash Chandra Purohit**
- A-136 : Akshat Singh**
- A-139 : Naveen Kumar**
- A-141 : Aditya Sarda(Sh. Karan K. Gogna & R.K.
Mohit Gupta, Adv., appeared on his behalf)**
- A-143 : Sudhir Punia**
- A-146 : Leena Harivyasi (A/bail application pending)**

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- A-147 : Vimal Sanwarmal Sharma with (Sh. Vikram Panwar & Sh. Hitesh Kumar) (A/bail application pending)**
A-160 : Shiv Raj Sharma. (A/bail application pending)
A-162 : Naveen Choudhary(A/bail application pending)
A-173 : Peeyush Aggarwal
A-174 : Paramvir Singh Sangwan (A/bail application pending)
A-175 : Vijay Jhindal (A/bail application pending)
A-177 : Rajiv Kumar Rana

An application from personal appearance from accused no. A116 as well as an application for recall of warrant of arrest dated 22.11.2019 in respect of accused no. A-116 have been filed on the ground that the applicant is pursuing his legal remedy before Hon'ble High Court, Chandigarh, after dismissal of application for anticipatory bail from this court. This is no ground to seek exemption as no order of protection, on interim basis or otherwise, is passed by our Hon'ble High Court, Chandigarh, in respect of said accused. As such, request is declined and both the applications stand disposed off. Now warrant of arrest of accused no. A-116 be issued for 31.1.2020 to be executed through DCP(HQ).

An application for exemption from personal appearance of accused no. 141 has been filed on the ground that the accused has not been supplied documents etc. till date by the Complaint side, in respect of which, application u/s 207 Cr.P.C was disposed off on previous date of hearing by observing that learned senior standing counsel stated at bar that they have supplied all the documents in soft copy to accused no. 141 by way of pendrive. Learned PP stated at bar today that on the previous date of hearing, he had given all the documents in pendrive to three different counsels but he was not sure about the present counsel qua accused no. A-141. However, he assured the court to supply the soft copy in pendrive

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before the next date of hearing i.e. 31.1.2020. In these circumstances, the application of even date, moved for correction of typographical error in zimni order dated 22.11.2019 as well as for direction for supply of document, stand disposed off and in the interest of justice, the presence of accused A-141 is once again exempted for today for the reason stated in the application for exemption which also stands disposed off.

The SFIO was also to file reply to another application of accused no. A-141 for cancellation of warrant of arrest. Reply to application dated 3.10.2019 of accused no. A-141 for cancellation of warrant of arrest has been filed. Copy supplied to the opposite counsel. Heard. Record perused. In-disputably, accused no. A-141 was summoned by my Learned Predecessor vide order dated 03.06.2019 on the basis of evidence which prima facie showed his involvement in crime with other accused persons and bailable warrant was ordered to be issued to secure his presence. Despite that, the accused no. A-141 failed to appear in court and on 4.9.2019, my Learned Predecessor, by taking into consideration the fact that bailable warrant was being received unserved with different reports of non-service, service through family members etc. hence, it appeared that service was being avoided intentionally and that the offence in question was based on a deep rooted conspiracy of main perpetrator of the crime with the present accused no. A-141 and other similar situated accused, it was required that the presence of accused no. A-141 be procured through warrant of arrest. Since my Learned Predecessor, as noticed above, issued warrant of arrest after taking into consideration the nature of offence as well as the circumstances showing intentional evading of process of service, I find no justifiable ground at this stage to order cancellation of warrant of arrest issued against accused No. A-141. Accordingly, request is declined and the application for cancellation of warrant of arrest of Accused no. A-141 is hereby disposed off.

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An application for exemption from personal appearance of accused No. A-147 has been moved on the ground that anticipatory bail application is pending before this court. Heard. Request allowed. Presence of accused A-147 is exempted for today.

Since bail applications of accused No. 121, 146, 147, 160, 162, 174 and 175 are pending adjudication before this court, till decision of bail applications, no coercive process shall be initiated against them.

At this stage, it has been brought to my notice by Sh. Akash Singh Jangra, learned counsel appearing on behalf of accused no. A-177 that they have moved application for anticipatory bail today itself before this court and requested that interim protection against execution of warrant of arrest be granted in favour of A-177 like similar situated accused persons. Heard. Record perused. On the ground of parity, accused No. A-177 is extended interim protection till disposal of application for anticipatory bail.

Warrant of arrest issued against remaining accused named above received back unexecuted. Execution of warrant of arrest issued against remaining above named accused, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 31.1.2020 to be executed through DCP(HQ).

Accused, A-149 : Vijay Shukla(Anticipatory bail pending)

Present : S/Sh. Puneet Sharma and Gautam Avasthi, Advocate, for the accused, A-149.

Accused, A-149, Vijay Shukla, had approached Hon'ble Supreme Court for relief in Writ Petition (Criminal) No.239/2019 entitled "Vijay Shukla Vs. Union of India and others" dated 3.9.2019 but the same has been disposed off on 19.9.2019.

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Now fresh bailable warrant, issued in pursuance of order dated 30.7.2019 by my Learned Predecessor, be issued for 31.1.2020.

Accused who is in custody :

A-130 : Jainam Rathod

Above named accused produced before me through video conferencing. He be kept in District Jail, Bhondsi till 31.1.2020 and be produced in the court on the date fixed through video conferencing.

Accused who are on bail

A-150 : Ajit Singh Rathore
A-158 : Ramlal Arya
A-159 : Hemant Kumar Jain
A-161 : Praveen Kumar
A-183 : Rituraj Singh
A-184 : Dushyant Singh Rathore
A-186 : Jitesh Kumar Parmar.

All the abovenamed accused are on bail. They have put in appearance in person and are directed to appear in the court on 31.1.2020 for further proceedings as well as for recording statements as approver in pursuance of application to turn an approver and become witness for the prosecution filed in compliance of order passed by Hon'ble Punjab and Haryana High Court, Chandigarh. Let their statements be recorded separately on the date fixed on the lines of the direction given by hon'ble High Court while extending concession of bail to above mentioned accused regarding "Approver".

A-179 : Damyanti Bhandari
A-182 : Nimesh Kumar Ramesh Chandri Soni
A-185 : Shashank Shekhar Singh Rathore
Present:- Sh. Amit Kumar, Adv., for Accused no. A-179.
Sh. Pawan Kumar Raghav, Adv. for accused No. A-182 and A-185.

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All the above named accused appeared in person. They are on bail. Hence, they are directed to appear in the court on 17.12.2019 the date already for further proceedings as well as for recording statements as approver in pursuance of application to turn an approver and become witness for the prosecution filed in compliance of order passed by Hon'ble Punjab and Haryana High Court, Chandigarh. Let their statements be recorded separately on the date fixed on the lines of the direction given by hon'ble High Court while extending concession of bail to above mentioned accused regarding "Approver".

Accused No.A-180 : Ichchhita Dungarwal

Present : Accused no. A-180 on bail with S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels.

Presence of accused No. A-180 has been exempted till further orders by this court on 22.11.2019 **S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels**, put in appearance today on her behalf. He is directed to appear in the court on 31.1.2020 for further proceedings.

A-181 : Neha Kataria

Present : Accused Neha Kataria on bail with Sh. Hitesh Kumar, Adv.

Presence of accused No. A-181 has been exempted till further orders by this court on 22.11.2019 Sh. Hitesh Kumar, Adv., put in appearance today on her behalf. He is directed to appear in the court on 31.1.2020 for further proceedings.

The attendance sheet of accused is enclosed herewith.

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